

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

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KUNTZ, J.

TALISA FELICIANO and SONIA PAUCAR,

Plaintiff,

COMPLAINT

-against-

JURY TRIAL
DEMANDED

LEVY, M.J.

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, P.O. WITTHORN (Full
Name and Shield Number presently unknown), P.O.
RAGLAND (Full Name presently unknown, Shield
No. 1788), P.O. TEMME (Full Name and Shield
Number presently unknown) and P.O. ASHAP (Full
Name and Shield Number presently unknown),

CV 15

1454

Defendants.

Plaintiffs, TALISA FELICIANO and SONIA PAUCAR, by their attorneys, ROBERT J.
DIGIANNI JR., as and for their complaining of the defendants, hereby allege the following:

PRELIMINARY STATEMENT

1. Plaintiffs TALISA FELICIANO and SONIA PAUCAR bring this action for compensatory damages, punitive damages and attorney's fees pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988 for violation of their civil rights, as said rights are secured by said statutes and the Constitutions of the State of New York and the United States.

JURISDICTION

2. The action is brought pursuant to 42 U.S.C. § 1983, § 1985 and § 1988, and the Fourth and Fourteenth Amendments to the United States Constitution. Jurisdiction is conferred upon this Court by 28 U.S.C. §§ 1331, 1343(3) and (4) and the aforementioned statutory and constitutional provisions.

3. Plaintiffs TALISA FELICIANO and SONIA PAUCAR further invokes this Court's supplemental jurisdiction, pursuant to 28 U.S.C. § 1367, over any and all State law claims and causes of action which derive from the same nucleus of operative facts and are part of the same case or controversy that gives rise to the federally based claims and causes of action.

VENUE

4. Venue is proper for the United States District Court for the Eastern District of New York, pursuant to 28 U.S.C. § 1391(a), (b), (c) and § 1402(b) because the claims arose in this district and Plaintiffs resides in this district.

JURY DEMAND

5. Plaintiffs TALISA FELICIANO and SONIA PAUCAR respectfully demand a trial by jury of all issues in this matter pursuant to Fed.R.Civ.P. 38(b).

THE PARTIES

6. Plaintiff, TALISA FELICIANO ("Ms. Feliciano"), is and was at all relevant times hereto a citizen of the United States and a resident of the County of Queens and State of New York.

7. Plaintiff, SONIA PAUCAR ("Ms. Paucar"), is and was at all relevant times hereto a citizen of the United States and a resident of the County of Queens and State of New York.

8. Defendant, City of New York ("City"), is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

9. Defendant, New York City Police Department ("NYPD"), is a charter agency of the City authorized to perform law enforcement functions in and for the City. Defendant City maintains the NYPD, a duly authorized public authority and/or police department, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal

Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, City of New York.

10. Defendant, P.O. WITTHORN (Full Name and Shield Number presently unknown) (“P.O. Witthorn”), is and was at all times relevant hereto an employee of The City, duly appointed and acting as a police officer in NYPD, acting in the course and scope of his employment as such and in furtherance of the interests and business of said employer and was acting under the supervision of said department and according to their official duties.

11. Defendant, P.O. RAGLAND (Full Name presently unknown; Shield No. 1788) (“P.O. Ragland”), is and was at all times relevant hereto an employee of The City, duly appointed and acting as a police officer in NYPD, acting in the course and scope of his employment as such and in furtherance of the interests and business of said employer and was acting under the supervision of said department and according to their official duties.

12. Defendant, P.O. TEMME (Full Name and Shield Number presently unknown) (“P.O. Temme”), is and was at all times relevant hereto an employee of The City, duly appointed and acting as a police officer in NYPD, acting in the course and scope of his employment as such and in furtherance of the interests and business of said employer and was acting under the supervision of said department and according to their official duties.

13. Defendant, P.O. ASHAP (Full Name and Shield Number presently unknown) (“P.O. Ashap”), is and was at all times relevant hereto an employee of The City, duly appointed and acting as a police officer in NYPD, acting in the course and scope of his employment as such and in furtherance of the interests and business of said employer and was acting under the supervision of said department and according to their official duties.

14. That at all times relevant herein, P.O. Witthorn was a supervisory employee of, and an agent, servant and/or employee of The City, acting in the course and scope of his employment as such and in furtherance of the interests and business of said employer, and otherwise performed and engaged in conduct incidental to the performance of his functions in the course of his duties. He is sued individually and in his supervisory capacity.

15. That at all times relevant herein, P.O. Ragland was a supervisory employee of, and an agent, servant and/or employee of The City, acting in the course and scope of his employment as such and in furtherance of the interests and business of said employer, and otherwise performed and engaged in conduct incidental to the performance of his functions in the course of his duties. He is sued individually and in his supervisory capacity.

16. That at all times relevant herein, P.O. Temme was a supervisory employee of, and an agent, servant and/or employee of The City, acting in the course and scope of his employment as such and in furtherance of the interests and business of said employer, and otherwise performed and engaged in conduct incidental to the performance of his functions in the course of his duties. He is sued individually and in his supervisory capacity.

17. That at all times relevant herein, P.O. Ashap was a supervisory employee of, and an agent, servant and/or employee of The City, acting in the course and scope of his employment as such and in furtherance of the interests and business of said employer, and otherwise performed and engaged in conduct incidental to the performance of his functions in the course of his duties. He is sued individually and in his supervisory capacity.

18. That at all times mentioned herein, the individual defendants were acting under color of state law, to wit, under color of statutes, ordinances, regulations, policies, customs and usages of The City and the State of New York.

19. That at all times relevant herein, the City operated, maintained, managed, supervised and controlled a police department as part of and in conjunction with its municipal functions.

20. That at all times relevant herein, P.O. Witthorn, P.O. Ragland, P.O. Temme and P.O. Ashap were each employees of The City and NYPD and that The City and NYPD are responsible for the actions and conduct of the individual defendants under the theory of *respondeat superior*.

21. That at all times relevant herein, P.O. Witthorn, P.O. Ragland, P.O. Temme and P.O. Ashap were personnel of The City and NYPD.

22. That at all times hereinafter mentioned and upon information and belief, The City and NYPD employed and supervised P.O. Witthorn, P.O. Ragland, P.O. Temme and P.O. Ashap.

23. Upon information and belief, P.O. Witthorn, P.O. Ragland, P.O. Temme and P.O. Ashap were graduates of the Police Academy of The City of New York, where they received training and instruction set forth and sanctioned by The City and NYPD.

24. Further, while at The Police Academy and intermittently thereafter, Patrol Officers and Police Officers including the named defendants receive training and instruction formulated by The City and NYPD and said training includes instruction as to custom and practice of The City and NYPD and same relates to arrest procedure, encounters with civilians and random stops.

25. Said custom and practice and said training and instruction regarding arrests, stops and frisks, by the very nature of the custom and practice violate the civil rights of the public, including the plaintiffs herein, and said custom and practice infringe upon the rights of the public at large, including the plaintiffs herein. In this subject case, the enforcement of the said custom and practice did in fact violate the rights of the plaintiffs herein.

26. At all times relevant hereto, The City had the duty to competently and sufficiently train, within the Police Academy and at the Command, Precinct and Patrol levels, P.O. Witthorn,

P.O. Ragland, P.O. Temme and P.O. Ashap, to conform their conduct to a standard for the protection of individuals, such as plaintiffs, against the unreasonable risk of harm by conducting themselves in such a manner so as not to intentionally, wantonly and/or negligently inflict injuries to citizens such as plaintiffs herein.

27. At all times relevant hereto, The City had the duty to competently and sufficiently train within the Police Academy and at the Command, Precinct and Patrol levels, P.O. Witthorn, P.O. Ragland, P.O. Temme and P.O. Ashap, in the protections of the rights of the plaintiffs under the Constitution and the Bill of Rights.

28. At all times hereinafter mentioned, upon information and belief, P.O. Witthorn, P.O. Ragland, P.O. Temme and P.O. Ashap were acting in their capacities as employees, agents or servants of The City.

29. At all times hereinafter mentioned, P.O. Witthorn, P.O. Ragland, P.O. Temme and P.O. Ashap were acting under color of law.

30. At all times hereinafter mentioned, the defendants' acts constituted state action.

31. That at all times hereinafter mentioned, P.O. Witthorn, P.O. Ragland, P.O. Temme and P.O. Ashap were on duty and/or acting as employees, agents or servants of The City and were also present at the same time and in the same place as plaintiff as aforesaid.

STATEMENT OF FACTS

32. That or about October 26, 2013, Ms. Feliciano and Ms. Paucar were a lawful citizens abiding by all laws, statutes and ordinances of the State of New York and the United State of America.

33. That on or about October 26, 2013, at approximately 2:15 a.m. Ms. Feliciano and Ms. Paucar were lawful passengers on a Queens-bound J train at and about the Broadway Junction Train Station in the County of Kings and State of New York ("train").

34. That on or about October 26, 2013, P.O. Witthorn of the 33rd Precinct, without cause or justification forcefully ordered Ms. Paucar off of the train by yelling, screaming and cursing at her.

35. That on or about October 26, 2013, Ms. Paucar complied fully with P.O. Witthorn's demands, despite his aggressive, unprofessional and threatening conduct.

36. That on or about October 26, 2013, Ms. Feliciano exited the train and asked defendant P.O. Witthorn what was going on.

37. That on or about October 26, 2013, P.O. Witthorn rudely, loudly and threateningly yelled at Ms. Feliciano to "mind her fucking business."

38. That on or about October 26, 2013, P.O. Witthorn abruptly and without justification tackled Ms. Feliciano into a wooden bench with great force, causing her injury and continued to strike her and subsequently handcuff her painfully.

39. That on or about October 26, 2013, P.O. Ragland of the 33rd Precinct grabbed Ms. Paucar and handcuffed her painfully.

40. That on or about October 26, 2013, P.O. Witthorn and P.O. Ragland dragged Ms. Feliciano and Ms. Paucar to the stationhouse.

41. That on or about October 26, 2013, Ms. Feliciano and Ms. Paucar were forcibly and invasively searched by exclusively male police officers; despite the fact that female officers were within hands reach of both victims.

42. That on or about October 26, 2013, during the search of Ms. Feliciano, one of the male officers tore open Ms. Feliciano's shirt, exposing her bra and breasts, leaving her that way for several hours while still handcuffed.

43. That on or about October 26, 2013, Ms. Paucar was held face-down by several male officers, and one of the officers used a cutting tool to cut her shoes off of her body.

44. That on or about October 26, 2013, defendants' police officers made fun of and ridiculed Ms. Paucar as they cut her shoes off.

45. That in addition, on or about October 26, 2013, defendants' police officers touched each plaintiff inappropriately and in a sexual manner, despite the plaintiffs' protests and cries for help.

46. That on or about October 26, 2013, nearby female police officers did nothing to come to the aid of Ms. Feliciano or Ms. Paucar.

47. That on or about October 26, 2013, Ms. Feliciano and Ms. Paucar were put into a cell and remained painfully shackled hand and foot.

48. That on or about October 26, 2013, P.O. Temme said to the plaintiffs "you are behaving like animals and that's why you are in the cage...As soon as you start behaving like 'ladies' we will uncuff you."

49. That on or about October 26, 2013, P.O. Temme only came over because P.O. Ashap was nearby at a computer terminal complaining that the sound from the victims handcuffs and shackles was distracting him.

50. That at all relevant times herein, both plaintiffs are openly lesbian and the officers knowingly committed the above acts in furtherance to a hate crime and sexual assault.

51. That on or about October 26, 2013, P.O. Ragland admitted to Ms. Feliciano that the only reason they arrested each of the plaintiffs was to log overtime pay.

52. That on or about October 26, 2013, defendants' police officers falsely claimed that P.O. Ragland was the arresting officer for both plaintiffs, when at minimum P.O. Witthorn was the arresting officer for Ms. Feliciano.

53. That on or about October 26, 2013, defendants' police officers falsely misidentified the arresting officer because they knew the involved officers had acted inappropriately and criminally and were seeking to obfuscate the truth of their actions.

54. That on or about October 26, 2013, defendants' police officers, without cause or justification, insulted, humiliated, brutalized, battered, assaulted, falsely arrested and unlawfully imprisoned Ms. Feliciano.

55. That on or about October 26, 2013, defendant police officers, without cause or justification, insulted, humiliated, brutalized, battered, assaulted, falsely arrested and unlawfully imprisoned Ms. Paucar.

56. That on or about October 26, 2013, as a result of aforementioned actions, Ms. Feliciano and Ms. Paucar were caused to sustain personal injuries, pain and suffering, embarrassment, humiliation, and emotional distress due to the negligence, recklessness and/or intentional acts of the defendants, while said defendants were acting within the scope of their employment.

57. That on or about October 26, 2013, Ms. Feliciano and Ms. Paucar were each illegally strip searched, falsely charged with PL 205.30, PL 195.05 and PL 240.20, unlawfully held at the stationhouse and then Central Booking for more than twenty four (24) hours (Docket Number 2013KN083316 for Ms. Paucar and 2013KN083317 for Ms. Feliciano).

58. That at all relevant times herein, Ms. Feliciano and Ms. Paucar continuously acted in accordance with all police officers requests despite the frequent physical, verbal and emotional harassment and abuse by defendants.

59. That on or about October 26, 2013, defendant police officers made false representations, accusations, allegations and complaints concerning Ms. Feliciano and Ms. Paucar to agents, servants and/or employees of NYPD and The City and the District Attorney's Office acted on the representations of the defendants herein and initiated criminal proceedings against the plaintiffs herein.

60. Furthermore, the defendants knew that the District Attorney's Office would rely upon their representations and the defendants knew that the District Attorney's Office would file criminal charges and prosecute the plaintiffs based upon their representations and the allegations and facts that these named individual defendants communicated to the District Attorney's Office.

61. Additionally, the individual defendants knew that the allegations that they communicated to the District Attorney's Office were false, exaggerated, inaccurate and untrue but they communicated said allegations nonetheless, knowing that plaintiffs would be subjected to a criminal prosecution and knowing that the plaintiffs' freedom and liberty would be jeopardized and, if convicted upon the false charges, plaintiffs would be incarcerated, thereby losing their freedom and liberty.

62. The individually named defendants, state actors, were acting pursuant to a policy, custom and practice, which was formulated, designed and implemented by the defendant City and NYPD, and which policy, custom and practice required the individually named defendants to make a certain, predetermined number and amount of arrests each week, month and year, irrespective of the

conditions or lack of criminal conduct that existed in their precinct or sector during their shifts or tours.

63. That these policies, customs and practices also encouraged, taught, instructed and/or required police officers to make arrests, stops, detentions and to target members of the public based on their appearance, race, sexual orientation, ethnicity and irrespective of their conduct, lawful or otherwise, thereby violating the rights of the public, including the plaintiff herein.

64. These policies, customs and practices were designed and formulated by the defendants City and NYPD and implemented and effectuated by its officers, by their very nature violated the rights of the public, and violated the rights of the plaintiff herein.

65. That while at the Police Academy, defendants' police officers were only provided one half-day of education of the penal law, which they were charged to enforce.

66. Thus, defendants' police officers were improperly and inadequately educated and trained and ill-prepared for law enforcement, resulting in the false arrests, misconduct and civil rights violations detailed herein.

67. That at all times relevant herein, the agents, servants and/or employees of NYPD and The City, including, but not limited to, P.O. Witthorn, P.O. Ragland, P.O. Temme and P.O. Ashap, knew or reasonably should have known that Ms. Feliciano and Ms. Paucar were innocent of all allegations against them.

68. That at all times relevant herein, the agents, servants and/or employees of NYPD and The City, including, but not limited to, P.O. Witthorn, P.O. Ragland, P.O. Temme and P.O. Ashap, knew or reasonably should have known that the allegations against Ms. Feliciano and Ms. Paucar were fabricated and fraudulent.

69. That at all times relevant herein, the agents, servants and/or employees of NYPD and The City, including, but not limited to, P.O. Witthorn, P.O. Ragland, P.O. Temme and P.O. Ashap, conspired to fraudulently and maliciously accuse Ms. Feliciano and Ms. Paucar of crimes of which they were innocent (“malfeasance”).

70. That defendants knew, and/or reasonably should have known, that there was no basis whatsoever to charge Ms. Feliciano and Ms. Paucar under the false charges.

71. Moreover, the complete and utter lack of merit and baseless nature of any conceivable criminal investigation and/or criminal prosecution of Ms. Feliciano and Ms. Paucar was readily apparent and patently obvious to all defendants but yet said criminal investigation and/or criminal prosecution of Ms. Feliciano and Ms. Paucar continued unabated, causing serious injury to Ms. Feliciano and Ms. Paucar and infringing, violating and rupturing their civil rights.

72. That defendants’ their agents, servants, and/or employees unlawfully and falsely arrested and imprisoned Ms. Feliciano and Ms. Paucar in furtherance to the malfeasance.

73. That at all times relevant herein, defendant police officers used excessive force and physical force upon Ms. Feliciano and Ms. Paucar causing them to sustain severe and permanent injuries, despite the fact that plaintiffs did not pose a threat to the physical safety of either officer, or to the public at large, or to any third party.

74. The defendants used excessive force against the plaintiffs despite the plaintiffs’ submissive and non-threatening conduct, which was duly deferential and respectful of the defendants’ apparent authority as law enforcement officers and/or state actors engaged in a law enforcement capacity.

75. That at all times relevant herein, during the unlawful apprehension, detention, arrest, imprisonment, assault and battery of Ms. Feliciano and Ms. Paucar, the NYPD police officers used

excessive, unnecessary and unwarranted force upon Ms. Feliciano and Ms. Paucar, without their consent and without justification or legal basis.

76. That at all times relevant herein, Ms. Feliciano and Ms. Paucar suffered extreme, disabling and protracted pain to their heads, necks, backs and limbs as a result of the excessive force.

77. That at all times relevant herein, notwithstanding that the apprehension, arrest, detention and imprisonment was unjust, unwarranted, without cause, with excessive force and unlawful, Ms. Feliciano and Ms. Paucar complied with the officers' commands and did not resist.

78. That at all times relevant herein, defendants, their agents, servants and/or employees, while acting in concert, maliciously and with the intent to injure Ms. Feliciano and Ms. Paucar, and without just cause or any right to do so, handcuffed, detained, jailed and restrained Ms. Feliciano and Ms. Paucar against their will, thereby depriving them of their liberty.

79. That the criminal charges filed against Ms. Feliciano and Ms. Paucar were falsely and maliciously fabricated by defendants, their agents, servants and/or employees based on false and incomplete information provided by defendants, their agents, servants and/or employees, in violation of Ms. Feliciano's and Ms. Paucar's civil rights and in furtherance of the malfeasance.

80. That at all times relevant herein, defendant police officers, with disregard for proper, lawful, appropriate, correct and effective investigative behaviors and procedures, investigated, stopped, detained, accused, arrested and charged Ms. Feliciano and Ms. Paucar when it was not right, just, lawful, proper or necessary to do so.

81. That at all times relevant herein, defendants, their agents, servants and/or employees had no cause or basis to stop, question or search Ms. Feliciano and Ms. Paucar.

82. That at all times relevant herein, defendant police officers falsely arrested Ms. Feliciano and Ms. Paucar for no reason and without probable cause to do so, then assaulted Ms. Feliciano and Ms. Paucar and battered them as described above.

83. That at all times relevant herein, defendant police officers placed Ms. Feliciano and Ms. Paucar under arrest for crimes that they did not commit.

84. That at all times relevant herein, Ms. Feliciano and Ms. Paucar were innocent of the false charges made against them further to the malfeasance.

85. That at all times relevant herein, defendants, their agents, servants and/or employees acted maliciously and intentionally.

86. That at all times relevant herein, the arrest, assault, battery and detention of Ms. Feliciano and Ms. Paucar was unlawful, unwarranted and unjustified.

87. That at all times relevant herein, defendants, their agents, servants and/or employees knew or should have known that Ms. Feliciano and Ms. Paucar were innocent of the crime charged.

88. That at all times herein mentioned, and without proof that Ms. Feliciano and Ms. Paucar were in any way connected to a crime, or that any crime was, in fact, committed, and without reasonable suspicion to stop Ms. Feliciano or Ms. Paucar, and without probable cause to detain or arrest Ms. Feliciano or Ms. Paucar, defendants, their agents, servants and/or employees individually, and acting in concert, knowingly, unlawfully, wrongfully and in furtherance of the malfeasance fabricated the false charges against Ms. Feliciano and Ms. Paucar and set these charges forth in false and fabricated criminal complaints, falsely sworn by the defendant police officers.

89. The criminal complaint and reports against plaintiffs were and are false and fraudulent.

90. Based upon the false criminal complaint and complaint reports prepared, upon information and belief, by the defendant employees, the Criminal Court arraigned Ms. Feliciano and Ms. Paucar on the false charges.

91. That at all times herein, defendants, their agents, servants and/or employees, all of whom were acting in the performance of their employment, within the scope of their authority and in furtherance of policies and practices implemented by The City and NYPD.

92. That at all times herein, said policies and practices included the implementation of a quota system with respect to the quantity of arrests expected and/or required of its police officers, including the aforesaid police officers.

93. That at all times herein, said policy and practice violated the civil rights of the public, including Ms. Feliciano and Ms. Paucar herein.

94. That at all times herein, defendants, their agents, servants and/or employees who participated in the arrest and investigation, imprisonment and prosecution of Ms. Feliciano and Ms. Paucar were following a custom and practice of retribution and retaliation taken on behalf of defendant police officers.

95. That at all times herein, defendant police officers caused the unlawful investigation of Ms. Feliciano and Ms. Paucar and the false arrest, unlawful imprisonment and malicious prosecution.

96. That at all times herein, defendants, their agents, servants and/or employees have an unlawful policy and practice that utilizes racial profiling when conducting investigations and performing its duties.

97. That Ms. Feliciano and Ms. Paucar were released from Central Booking after seeing the judge and the charges were dismissed.

98. Ms. Feliciano has suffered and continues to suffer psychological and emotional injuries and damage as a result of the events described herein.

99. Ms. Paucar has suffered and continues to suffer psychological and emotional injuries and damage as a result of the events described herein.

100. That the aforesaid assault, battery and abuse of authority was not the first incident wherein defendant police officers committed acts of misconduct while on duty as members of NYPD.

101. That NYPD and The City had actual and constructive notice of P.O. Withthorn, P.O. Ragland, P.O. Temme and P.O. Ashap's propensities for violence and misconduct but failed to do anything to mitigate the danger that their continued employment presented to the public at large, including the plaintiffs herein.

102. That at all times relevant herein, the NYPD and The City did fail to train and/or retrain and/or reinstruct defendant police officers after acquiring notice of their defective and dangerous propensities. The NYPD and The City did negligently hire, retain and train the individually named police officer defendants to the detriment of the public and to the plaintiff herein.

103. By reason of the foregoing, Ms. Feliciano and Ms. Paucar were compelled to and did necessarily, require medical attention and did necessarily pay and become liable therefore, and will necessarily continue to incur similar expenses in the future.

104. By reason of the foregoing, Ms. Feliciano and Ms. Paucar were compelled to, and did necessarily incur legal fees and did necessarily pay and become liable therefore, and will necessarily incur similar legal fees in the future.

PROCEDURAL PREREQUISITES

105. Plaintiffs timely filed a Notice of Claim against the defendants pursuant to General Municipal Law §50e.

106. The aforesaid Notice of Claim was duly served upon the defendants within ninety (90) days after the causes of action of plaintiff accrued.

107. More than thirty (30) days have elapsed since the service of the Notice of Claim upon the defendants.

108. That plaintiffs appeared for an examination pursuant to GML § 50-h.

109. The defendants and the comptroller have failed, neglected, and refused to pay, settle, compromise, or adjust the claim of the plaintiff herein.

110. This action has been commenced within three (3) years after the cause of action of plaintiff accrued.

111. Plaintiff has duly complied with all of the conditions precedent to the commencement of this action.

FIRST CAUSE OF ACTION
ON BEHALF OF TALISA FELICIANO FOR FALSE ARREST

112. Plaintiff, Ms. Feliciano, repeats, reiterates and realleges each and every allegation set forth in paragraphs 1 through 111, inclusive, of this Complaint, with the same force and effect as though more fully set forth at length herein.

113. Defendants had no probable cause to believe that plaintiff had committed a crime and plaintiff did not engage in any conduct that warranted her arrest.

114. As a result of the aforesaid conduct by defendants, Ms. Feliciano was subjected to an illegal, improper and false arrest by the defendants and taken into custody and caused to be falsely imprisoned, detained and confined without probable cause, privilege or consent.

115. By reason of their aforesaid conduct, defendants falsely arrested Ms. Feliciano and thereby violated her rights under New York state law and under the Fourth and Fourteenth Amendments to the United States Constitution.

116. That solely as a result of the negligence, recklessness and/or intentional acts of defendants as aforesaid, Ms. Feliciano suffered great humiliation, degradation, emotional injuries; loss of freedom; deprivation of her state and federal constitutional rights; serious, severe and permanent personal injuries and disabilities; pain and suffering and loss of enjoyment of life; economic harm; was rendered sick, sore, lame and disabled; sustained severe mental anguish, nervous shock and great physical pain and has been damaged accordingly in an amount exceeding the jurisdictional limits of all lower courts, which would otherwise have jurisdiction.

SECOND CAUSE OF ACTION

ON BEHALF OF TALISA FELICIANO FOR UNLAWFUL IMPRISONMENT

117. Plaintiff, Ms. Feliciano, repeats, reiterates and realleges each and every allegation set forth in paragraphs 1 through 116, inclusive, of this Complaint, with the same force and effect as though more fully set forth at length herein.

118. By reason of defendants' aforesaid conduct, plaintiff was detained without her consent and defendants knew she was detained against her consent.

119. That solely as a result of the negligence, recklessness and/or intentional acts of defendants as aforesaid, Ms. Feliciano suffered great humiliation, degradation, emotional injuries; loss of freedom; deprivation of her state and federal constitutional rights; serious, severe and

permanent personal injuries and disabilities; pain and suffering and loss of enjoyment of life; economic harm; was rendered sick, sore, lame and disabled; sustained severe mental anguish, nervous shock and great physical pain and has been damaged accordingly in an amount exceeding the jurisdictional limits of all lower courts, which would otherwise have jurisdiction.

THIRD CAUSE OF ACTION
ON BEHALF OF TALISA FELICIANO
AGAINST INDIVIDUAL DEFENDANTS
VIOLATION OF CIVIL RIGHTS AFFORDED BY
42 U.S.C. §1983, §1985 AND §1988

120. Plaintiff, Ms. Feliciano, repeats, reiterates and realleges each and every allegation set forth in paragraphs 1 through 119, inclusive, of this Complaint, with the same force and effect as though more fully set forth at length herein.

121. The defendants, acting in concert and individually and under the color of law, have deprived the plaintiff of her civil, constitutional and statutory rights and have conspired to deprive the plaintiff of such rights under 4th and 14th amendments and are liable to the plaintiff under the 5th amendment, 8th amendment, 42 U.S.C. §1983, §1985 and §1985.

122. As a result of the foregoing, plaintiff suffered injuries including but not limited to severe and permanent personal physical injuries, loss of freedom, loss of enjoyment of life, had her civil rights violated, severe and permanent emotional injuries, severe and permanent psychological injuries, anguish, distress, humiliation, embarrassment, shame, lost earnings, medical expenses and legal expenses and claims damages for the aforesaid injuries and accordingly has been damaged in an amount exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

FOURTH CAUSE OF ACTION

ON BEHALF OF TALISA FELICIANO FOR
MUNICIPAL LIABILITY AGAINST DEFENDANTS CITY OF NEW YORK
AND NEW YORK CITY POLICE DEPARTMENT
VIOLATION OF CIVIL RIGHTS AFFORDED BY
42 U.S.C. §1983, §1985 AND §1988

123. Plaintiff, Ms. Feliciano, repeats, reiterates and realleges each and every allegation set forth in paragraphs 1 through 122, inclusive, of this Complaint, with the same force and effect as though more fully set forth at length herein.

124. Defendants The City and NYPD knew or should have known of its employees, agents and/or servants propensity to engage in the illegal and wrongful acts detailed above.

125. Prior to the dates of occurrence as set forth herein, The City and NYPD developed and maintained policies and/or customs exhibiting deliberate indifference to the constitutional rights of persons in the City of New York, which policies and/or customs caused the violation of the plaintiff's rights.

126. At all relevant times herein, while at The Police Academy and intermittently thereafter, Patrol Officers and Police Officers including the named defendants receive training and instruction formulated by The City and NYPD and said training includes instruction as to custom and practice of The City and NYPD and same relates to the arrest procedure and procedure surrounding stops and frisks.

127. Said custom and practice, and said training and instruction regarding arrests, stops and frisks, by the very nature of the custom and practice violate the civil rights of the public, including the plaintiff herein, and said custom and practice infringe upon the rights of the public at large, including the plaintiff herein. In this subject case, the enforcement of the said custom and practice did in fact violate the rights of the plaintiff herein.

128. Prior to and including the dates of occurrences as set forth herein, upon information and belief, The City and NYPD developed and maintained policies and/or customs contributing to the causation of the subject incidents and the plaintiffs' injuries, such as racial profiling and the use and enforcement of a quota system with respect to stops, frisks, searches, police encounters, investigations and arrests.

129. Upon information and belief, it was the policy and/or custom of The City and NYPD to improperly and inadequately investigate citizen and other complaints of police misconduct, and acts of misconduct were instead tolerated by The City and NYPD, including, but not limited to the incidents where defendants and their supervisors have in the past falsely arrested individuals without probable cause, and made, and allowed other fellow police officers and others of its employees to make false entries in official police department records, and to issue false and fraudulent criminal complaints and accusatory instruments, to cover up and hide their wrongful conduct.

130. It was the policy and/or custom of The City and NYPD to fail to take the steps to discipline, train, supervise or otherwise correct the improper, illegal conduct of the individual defendants in this and in similar cases involving misconduct, thereby failing to adequately discourage further constitutional violations on the part of its police officers.

131. The City and NYPD did not require appropriate in-service training or re-training of officers who were known to have engaged in police misconduct.

132. As a result of the above described policies and/or customs, police officers of NYPD believed that their actions would not be properly monitored by supervisory officers and that misconduct would not be investigated or sanctioned, but would be tolerated.

133. The above policies and/or customs demonstrated a deliberate indifference on the part of the policymakers of The City and NYPD to the constitutional rights of persons within the City of New York and were the cause of the violations of the plaintiffs' rights alleged herein.

134. As a result of the foregoing, plaintiff suffered injuries including but not limited to severe and permanent personal physical injuries, loss of freedom, loss of enjoyment of life, had his civil rights violated, severe and permanent emotional injuries, severe and permanent psychological injuries, anguish, distress, humiliation, embarrassment, shame, lost earnings, medical expenses and legal expenses and claims damages for the aforesaid injuries and accordingly has been damaged in an amount exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

FIFTH CAUSE OF ACTION
ON BEHALF OF TALISA FELICIANO FOR
UNREASONABLE AND EXCESSIVE FORCE
VIOLATION OF CIVIL RIGHTS AFFORDED BY
42 U.S.C. §1983, §1985 AND §1988

135. Plaintiff, Ms. Feliciano repeats, reiterates and realleges each and every allegation set forth in paragraphs 1 through 134, inclusive, of this Complaint, with the same force and effect as though more fully set forth at length herein.

136. By their conduct, defendants under color of law deprived Ms. Feliciano of her constitutional rights to be free from excessive and unreasonable force.

137. Plaintiff claims compensatory and punitive damages for the injuries set forth above and accordingly has been damaged in an amount exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

SIXTH CAUSE OF ACTION

ON BEHALF OF TALISA FELICIANO FOR ASSAULT AND BATTERY

138. Plaintiff, Ms. Feliciano, repeats, reiterates and realleges each and every allegation set forth in paragraphs 1 through 137, inclusive, of this Complaint, with the same force and effect as though more fully set forth at length herein.

139. By reason of defendants' aforesaid acts, specifically in the course of their false arrest and imprisonment of the plaintiff, defendants committed the torts of assault and battery upon her.

140. That at all relevant times herein, defendants, their agents, servants and/or employees were under a duty to protect Ms. Feliciano from the violation of her civil rights, menacing, assault, battery, excessive force, brutality, and/or other intentional acts, negligence, recklessness and/or want of care in her unlawful detention and/or arrest by the NYPD police officers committing said acts.

141. That at all relevant times herein, defendants, their agents, servants and/or employees menaced, assaulted, battered, and used excessive force, maliciousness and brutality in the arrest, detention and custody of Ms. Feliciano.

142. That at all relevant times herein, defendants, their agents, servants and/or employees caused Ms. Feliciano to reasonably apprehend that she was about to be harmfully and offensively contacted in her arrest and detention.

143. That at all relevant times herein, defendants, their agents, servants and/or employees offensively contacted and harmed Ms. Feliciano during her arrest and detention.

144. That at all relevant times herein, defendants, their agents, servants and/or employees acted in an unsafe and unreasonable manner in the arrest, detention and custody of Ms. Feliciano under the circumstances and conditions then and there existing.

145. That at all relevant times herein, defendants, their agents, servants and/or employees were negligent, reckless and intentional in their failure to protect Ms. Feliciano from the violation of her civil rights, menacing, assault, battery, excessive force and brutality in her arrest and/or detention.

146. That solely as a result of the negligence, recklessness and/or intentional acts of defendants as aforesaid, Ms. Feliciano suffered great humiliation, degradation, emotional injuries; loss of freedom; deprivation of her state and federal constitutional rights; serious, severe and permanent personal injuries and disabilities; pain and suffering and loss of enjoyment of life; economic harm; was rendered sick, sore, lame and disabled; sustained severe mental anguish, nervous shock and great physical pain and has been damaged accordingly in an amount exceeding the jurisdictional limits of all lower courts, which would otherwise have jurisdiction.

SEVENTH CAUSE OF ACTION
ON BEHALF OF TALISA FELICIANO FOR
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS

147. Plaintiff, Ms. Feliciano, repeats, reiterates and realleges each and every allegation set forth in paragraphs 1 through 146, inclusive, of this Complaint, with the same force and effect as though more fully set forth at length herein.

148. By their foregoing acts, specifically their false arrest and unlawful imprisonment of her, their assault and battery upon her, defendants intended to and did cause the foregoing harm to plaintiff.

149. That at all times relevant herein, defendants, their agents, servants and/or employees acted intentionally and/or with a reckless disregard for the likelihood of causing emotional distress to

plaintiff in fraudulently and maliciously pursuing the malfeasance, including all acts further thereto as set forth above.

150. That at all times relevant herein, defendants, their agents, servants and/or employees acted intentionally and/or with a reckless disregard for the likelihood of causing emotional distress to plaintiff in being verbally abusive, intimidating and threatening to her.

151. That at all times relevant herein, defendants, their agents, servants and/or employees acted heinously and beyond the standards of civilized decency.

152. That at all times relevant herein, defendants, their agents, servants and/or employees' conduct was utterly intolerable in a civilized society.

153. That at all times relevant herein, defendants, their agents, servants and/or employees committed these acts in public.

154. That solely as a result of the negligence, recklessness and/or intentional acts of defendants as aforesaid, Ms. Feliciano suffered great humiliation, degradation, emotional injuries; loss of freedom; deprivation of her state and federal constitutional rights; serious, severe and permanent personal injuries and disabilities; pain and suffering and loss of enjoyment of life; economic harm; was rendered sick, sore, lame and disabled; sustained severe mental anguish, nervous shock and great physical pain and has been damaged accordingly in an amount exceeding the jurisdictional limits of all lower courts, which would otherwise have jurisdiction.

EIGHTH CAUSE OF ACTION
ON BEHALF OF TALISA FELICIANO FOR
NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS

155. Plaintiff, Ms. Feliciano, repeats, reiterates and realleges each and every allegation set forth in paragraphs 1 through 154, inclusive, of this Complaint, with the same force and effect as though more fully set forth at length herein.

156. That at all times relevant herein, defendants, their agents, servants and/or employees were under an affirmative duty to refrain from abusing their power and position and from fraudulently and maliciously pursuing the malfeasance, including all acts further thereto as set forth above.

157. That at all times relevant herein, defendants, their agents, servants and/or employees knew or reasonably should have known that the malfeasance could lead to plaintiff's harm.

158. That at all times relevant herein, plaintiff justifiably relied upon defendants, their agents, servants and/or employees to conduct themselves properly as public officials and not to abuse their power and position in the manner as set forth above.

159. That at all times relevant herein, defendants, their agents, servants and/or employees breached their duty to plaintiff by abusing their power and position as set forth above.

160. That at all times relevant herein, defendants, their agents, servants and/or employees were under an affirmative duty to treat plaintiff with courtesy, professionalism and respect.

161. That at all times relevant herein, defendants, their agents, servants and/or employees knew or reasonably should have known that failing and/or refusing to treat plaintiff with courtesy, professionalism and respect could lead to her harm under the circumstances then and there existing.

162. That at all times relevant herein, plaintiff justifiably relied upon defendants, their agents, servants and/or employees to treat her with courtesy, professionalism and respect.

163. That at all times relevant herein, defendants, their agents, servants and/or employees breached their duty to plaintiff in being verbally abusive, intimidating and threatening to her.

164. That solely as a result of the negligence of defendants as aforesaid, Ms. Feliciano suffered injuries including but not limited to severe and permanent emotional injuries, severe and permanent psychological injuries, anguish, distress, humiliation, embarrassment, shame, severe and permanent personal physical injuries, loss of enjoyment of life, had her civil rights violated, lost earnings, medical expenses and legal expenses and claims damages for the aforesaid injuries and accordingly has been damaged in an amount exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

NINTH CAUSE OF ACTION

ON BEHALF OF TALISA FELICIANO FOR FAILURE TO INTERVENE

165. Plaintiff, Ms. Feliciano, repeats, reiterates and realleges each and every allegation set forth in paragraphs 1 through 164, inclusive, of this Complaint, with the same force and effect as though more fully set forth at length herein.

166. Each and every individual defendant had an affirmative duty to intervene on Ms. Feliciano's behalf to prevent the violation of her constitutional rights.

167. The individual defendants failed to intervene on Ms. Feliciano's behalf to prevent the violation of her constitutional rights despite having had a realistic opportunity to do so.

168. That solely as a result of the negligence, recklessness and/or intentional acts of defendants as aforesaid, Ms. Feliciano suffered great humiliation, degradation, emotional injuries; loss of freedom; deprivation of her state and federal constitutional rights; serious, severe and permanent personal injuries and disabilities; pain and suffering and loss of enjoyment of life; economic harm; was rendered sick, sore, lame and disabled; sustained severe mental anguish,

nervous shock and great physical pain and has been damaged accordingly in an amount exceeding the jurisdictional limits of all lower courts, which would otherwise have jurisdiction.

TENTH CAUSE OF ACTION
ON BEHALF OF TALISA FELICIANO FOR
MALICIOUS ABUSE OF PROCESS UNDER 42 U.S.C. § 1983

169. Plaintiff, Ms. Feliciano repeats, reiterates and realleges each and every allegation set forth in paragraphs 1 through 168, inclusive, of this Complaint, with the same force and effect as though more fully set forth at length herein.

170. Defendants abused the legal process to place Ms. Feliciano under arrest.

171. Defendants arrested Ms. Feliciano in order to obtain a collateral objective outside the legitimate ends of the legal process.

172. Defendants acted with intent to do harm to Ms. Feliciano without excuse or justification.

173. That solely as a result of the negligence, recklessness and/or intentional acts of defendants as aforesaid, Ms. Feliciano suffered great humiliation, degradation, emotional injuries; loss of freedom; deprivation of her state and federal constitutional rights; serious, severe and permanent personal injuries and disabilities; pain and suffering and loss of enjoyment of life; economic harm; was rendered sick, sore, lame and disabled; sustained severe mental anguish, nervous shock and great physical pain and has been damaged accordingly in an amount exceeding the jurisdictional limits of all lower courts, which would otherwise have jurisdiction.

ELEVENTH CAUSE OF ACTION
ON BEHALF OF TALISA FELICIANO FOR
DELAY AND DENIAL OF MEDICAL TREATMENT AND FAILURE
TO PROTECT WHILE IN CUSTODY
VIOLATION OF CIVIL RIGHTS AFFORDED BY
42 U.S.C. §1983, §1985 AND §1988

174. Plaintiff, Ms. Feliciano, repeats, reiterates and realleges each and every allegation set forth in paragraphs 1 through 173, inclusive, of this Complaint, with the same force and effect as though more fully set forth at length herein.

175. By their conduct and under color of law, defendants deprived Ms. Feliciano of her constitutional rights to immediate medical treatment and failed to protect her once she became a detainee, thus perpetuating and exacerbating her physical and mental pain and suffering.

176. As a result of the foregoing, plaintiff suffered injuries including but not limited to severe and permanent personal physical injuries, loss of freedom, loss of enjoyment of life, had her civil rights violated, severe and permanent emotional injuries, severe and permanent psychological injuries, anguish, distress, humiliation, embarrassment, shame, lost earnings, medical expenses and legal expenses and claims damages for the aforesaid injuries and accordingly has been damaged in an amount exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

TWELFTH CAUSE OF ACTION
ON BEHALF OF TALISA FELICIANO FOR
NEGLIGENT HIRING AND RETENTION

177. Plaintiff, Ms. Feliciano, repeats, reiterates and realleges each and every allegation set forth in paragraphs 1 through 176, inclusive, of this Complaint, with the same force and effect as though more fully set forth at length herein.

178. Upon information and belief, defendants failed to use reasonable care in the hiring and retention of the aforesaid defendants who conducted and participated in the arrest of Ms. Feliciano.

179. Defendants knew, or should have known in the exercise of reasonable care, the propensities of the individual defendants to engage in the wrongful conduct heretofore alleged in this Verified Complaint.

180. That solely as a result of the negligence, recklessness and/or intentional acts of defendants as aforesaid, Ms. Feliciano suffered great humiliation, degradation, emotional injuries; loss of freedom; deprivation of her state and federal constitutional rights; serious, severe and permanent personal injuries and disabilities; pain and suffering and loss of enjoyment of life; economic harm; was rendered sick, sore, lame and disabled; sustained severe mental anguish, nervous shock and great physical pain and has been damaged accordingly in an amount exceeding the jurisdictional limits of all lower courts, which would otherwise have jurisdiction.

THIRTEENTH CAUSE OF ACTION
ON BEHALF OF TALISA FELICIANO FOR
NEGLIGENT TRAINING AND SUPERVISION

181. Plaintiff, Ms. Feliciano, repeats, reiterates and realleges each and every allegation set forth in paragraphs 1 through 180, inclusive, of this Complaint, with the same force and effect as though more fully set forth at length herein.

182. Upon information and belief, defendants failed to use reasonable care in the training and supervision of the aforesaid defendants who conducted and participated in the arrest of Ms. Feliciano.

183. That defendants were negligent in hiring and retaining a persons who were unfit to serve as police officers and who they knew or should have known had dangerous propensities and lack of proper temperament.

184. That defendants failed to exercise reasonable precautions in employing the aforesaid police officers and failing to properly investigate their background and that these police officers were otherwise unfit to serve as police officers for defendants.

185. That defendants were negligent in its instructions of its police officers in not exercising care in instructing them as to their deportment, behavior and conduct as police officers and representatives of defendants and in training and instruction, among other things of the proper conduct of police officers in making an arrest and what they should do following an arrest of an individual.

186. That solely as a result of the negligence, recklessness and/or intentional acts of defendants as aforesaid, Ms. Feliciano suffered great humiliation, degradation, emotional injuries; loss of freedom; deprivation of her state and federal constitutional rights; serious, severe and permanent personal injuries and disabilities; pain and suffering and loss of enjoyment of life; economic harm; was rendered sick, sore, lame and disabled; sustained severe mental anguish, nervous shock and great physical pain and has been damaged accordingly in an amount exceeding the jurisdictional limits of all lower courts, which would otherwise have jurisdiction.

FOURTEENTH CAUSE OF ACTION

ON BEHALF OF TALISA FELICIANO FOR MALICIOUS PROSECUTION

187. Plaintiff, Ms. Feliciano, repeats, reiterates and realleges each and every allegation set forth in paragraphs 1 through 186, inclusive, of this Complaint, with the same force and effect as though more fully set forth at length herein.

188. As a result of the foregoing malicious prosecution, plaintiff suffered injuries including but not limited to severe and permanent personal physical injuries, loss of freedom, loss of enjoyment of life, had her civil rights violated, severe and permanent emotional injuries, severe and permanent psychological injuries, anguish, distress, humiliation, embarrassment, shame, lost earnings, medical expenses and legal expenses and claims damages for the aforesaid injuries and accordingly has been damaged in an amount exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

FIFTEENTH CAUSE OF ACTION

ON BEHALF OF TALISA FELICIANO FOR NEGLIGENCE

189. Plaintiff, Ms. Feliciano, repeats, reiterates and realleges each and every allegation set forth in paragraphs 1 through 188, inclusive, of this Complaint, with the same force and effect as though more fully set forth at length herein.

190. That defendants were negligent in the false arrests, unlawful imprisonment and malicious prosecution of Ms. Feliciano; in failing to use such care in the performance of police duties as a reasonably prudent and careful police officer would have used under similar circumstances without any negligence on the part of Ms. Feliciano contributing thereto; and defendants were negligent in hiring and retaining a persons who were unfit to serve as police officers and who they knew or should have known had dangerous propensities and lack of proper temperament, in that defendants failed to exercise reasonable precautions in employing the aforesaid

police officers and failing to properly investigate their background and that these police officers were otherwise unfit to serve as police officers for defendants; and defendants were negligent in its instructions of its police officers IN not exercising care in instructing them as to their deportment, behavior and conduct as police officers and representatives of defendants and in training and instructions, among other things of the proper conduct of police officers in making an arrest and what they should do following an arrest of an individual.

191. That defendants are liable for the conduct of their agents, servants and/or employees by virtue of *respondeat superior*.

192. As a result of the foregoing, plaintiff suffered injuries including but not limited to severe and permanent personal physical injuries, loss of freedom, loss of enjoyment of life, had her civil rights violated, severe and permanent emotional injuries, severe and permanent psychological injuries, anguish, distress, humiliation, embarrassment, shame, lost earnings, medical expenses and legal expenses and claims damages for the aforesaid injuries and accordingly has been damaged in an amount exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

SIXTEENTH CAUSE OF ACTION
ON BEHALF OF TALISA FELICIANO FOR PUNITIVE DAMAGES

193. Plaintiff, Ms. Feliciano, repeats, reiterates and realleges each and every allegation set forth in paragraphs 1 through 192, inclusive, of this Complaint, with the same force and effect as though more fully set forth at length herein.

194. Due to the above, Ms. Feliciano should be awarded punitive damages as against the defendants in an amount exceeding the jurisdictional limits of all lower courts, which would otherwise have jurisdiction.

SEVENTEENTH CAUSE OF ACTION
ON BEHALF OF SONIA PAUCAR FOR FALSE ARREST

195. Plaintiff, Ms. Paucar, repeats, reiterates and realleges each and every allegation set forth in paragraphs 1 through 194, inclusive, of this Complaint, with the same force and effect as though more fully set forth at length herein.

196. Defendants had no probable cause to believe that plaintiff had committed a crime and plaintiff did not engage in any conduct that warranted her arrest.

197. As a result of the aforesaid conduct by defendants, Ms. Paucar was subjected to an illegal, improper and false arrest by the defendants and taken into custody and caused to be falsely imprisoned, detained and confined without probable cause, privilege or consent.

198. By reason of their aforesaid conduct, defendants falsely arrested Ms. Paucar and thereby violated her rights under New York state law and under the Fourth and Fourteenth Amendments to the United States Constitution.

199. That solely as a result of the negligence, recklessness and/or intentional acts of defendants as aforesaid, Ms. Paucar suffered great humiliation, degradation, emotional injuries; loss of freedom; deprivation of her state and federal constitutional rights; serious, severe and permanent personal injuries and disabilities; pain and suffering and loss of enjoyment of life; economic harm; was rendered sick, sore, lame and disabled; sustained severe mental anguish, nervous shock and great physical pain and has been damaged accordingly in an amount exceeding the jurisdictional limits of all lower courts, which would otherwise have jurisdiction.

EIGHTEENTH CAUSE OF ACTION

ON BEHALF OF SONIA PAUCAR FOR UNLAWFUL IMPRISONMENT

200. Plaintiff, Ms. Paucar, repeats, reiterates and realleges each and every allegation set forth in paragraphs 1 through 199, inclusive, of this Complaint, with the same force and effect as though more fully set forth at length herein.

201. By reason of defendants' aforesaid conduct, plaintiff was detained without her consent and defendants knew she was detained against her consent.

202. That solely as a result of the negligence, recklessness and/or intentional acts of defendants as aforesaid, Ms. Paucar suffered great humiliation, degradation, emotional injuries; loss of freedom; deprivation of her state and federal constitutional rights; serious, severe and permanent personal injuries and disabilities; pain and suffering and loss of enjoyment of life; economic harm; was rendered sick, sore, lame and disabled; sustained severe mental anguish, nervous shock and great physical pain and has been damaged accordingly in an amount exceeding the jurisdictional limits of all lower courts, which would otherwise have jurisdiction.

NINETEENTH CAUSE OF ACTION

**ON BEHALF OF SONIA PAUCAR
AGAINST INDIVIDUAL DEFENDANTS
VIOLATION OF CIVIL RIGHTS AFFORDED BY
42 U.S.C. §1983, §1985 AND §1988**

203. Plaintiff, Ms. Paucar, repeats, reiterates and realleges each and every allegation set forth in paragraphs 1 through 202, inclusive, of this Complaint, with the same force and effect as though more fully set forth at length herein.

204. The defendants, acting in concert and individually and under the color of law, have deprived the plaintiff of her civil, constitutional and statutory rights and have conspired to deprive

the plaintiff of such rights under 4th and 14th amendments and are liable to the plaintiff under the 5th amendment, 8th amendment, 42 U.S.C. §1983, §1985 and §1985.

205. As a result of the foregoing, plaintiff suffered injuries including but not limited to severe and permanent personal physical injuries, loss of freedom, loss of enjoyment of life, had her civil rights violated, severe and permanent emotional injuries, severe and permanent psychological injuries, anguish, distress, humiliation, embarrassment, shame, lost earnings, medical expenses and legal expenses and claims damages for the aforesaid injuries and accordingly has been damaged in an amount exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

TWENTIETH CAUSE OF ACTION
ON BEHALF OF SONIA PAUCAR FOR
MUNICIPAL LIABILITY AGAINST DEFENDANTS CITY OF NEW YORK
AND NEW YORK CITY POLICE DEPARTMENT
VIOLATION OF CIVIL RIGHTS AFFORDED BY
42 U.S.C. §1983, §1985 AND §1988

206. Plaintiff, Ms. Paucar, repeats, reiterates and realleges each and every allegation set forth in paragraphs 1 through 205, inclusive, of this Complaint, with the same force and effect as though more fully set forth at length herein.

207. Defendants The City and NYPD knew or should have known of its employees, agents and/or servants propensity to engage in the illegal and wrongful acts detailed above.

208. Prior to the dates of occurrence as set forth herein, The City and NYPD developed and maintained policies and/or customs exhibiting deliberate indifference to the constitutional rights of persons in the City of New York, which policies and/or customs caused the violation of the plaintiff's rights.

209. At all relevant times herein, while at The Police Academy and intermittently thereafter, Patrol Officers and Police Officers including the named defendants receive training and instruction formulated by The City and NYPD and said training includes instruction as to custom and practice of The City and NYPD and same relates to the arrest procedure and procedure surrounding stops and frisks.

210. Said custom and practice, and said training and instruction regarding arrests, stops and frisks, by the very nature of the custom and practice violate the civil rights of the public, including the plaintiff herein, and said custom and practice infringe upon the rights of the public at large, including the plaintiff herein.

211. In this subject case, the enforcement of the said custom and practice did in fact violate the rights of the plaintiff herein.

212. Prior to and including the dates of occurrences as set forth herein, upon information and belief, The City and NYPD developed and maintained policies and/or customs contributing to the causation of the subject incidents and the plaintiff's injuries, such as racial profiling and the use and enforcement of a quota system with respect to stops, frisks, searches, police encounters, investigations and arrests.

213. Upon information and belief, it was the policy and/or custom of The City and NYPD to improperly and inadequately investigate citizen and other complaints of police misconduct, and acts of misconduct were instead tolerated by The City and NYPD, including, but not limited to the incidents where defendants and their supervisors have in the past falsely arrested individuals without probable cause, and made, and allowed other fellow police officers and others of its employees to make false entries in official police department records, and to issue false and fraudulent criminal complaints and accusatory instruments, to cover up and hide their wrongful conduct.

214. It was the policy and/or custom of The City and NYPD to fail to take the steps to discipline, train, supervise or otherwise correct the improper, illegal conduct of the individual defendants in this and in similar cases involving misconduct, thereby failing to adequately discourage further constitutional violations on the part of its police officers.

215. The City and NYPD did not require appropriate in-service training or re-training of officers who were known to have engaged in police misconduct.

216. As a result of the above described policies and/or customs, police officers of NYPD believed that their actions would not be properly monitored by supervisory officers and that misconduct would not be investigated or sanctioned, but would be tolerated.

217. The above policies and/or customs demonstrated a deliberate indifference on the part of the policymakers of The City and NYPD to the constitutional rights of persons within the City of New York and were the cause of the violations of the plaintiff's rights alleged herein.

218. As a result of the foregoing, plaintiff suffered injuries including but not limited to severe and permanent personal physical injuries, loss of freedom, loss of enjoyment of life, had her civil rights violated, severe and permanent emotional injuries, severe and permanent psychological injuries, anguish, distress, humiliation, embarrassment, shame, lost earnings, medical expenses and legal expenses and claims damages for the aforesaid injuries and accordingly has been damaged in an amount exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

TWENTY-FIRST CAUSE OF ACTION
ON BEHALF OF SONIA PAUCAR FOR
UNREASONABLE AND EXCESSIVE FORCE
VIOLATION OF CIVIL RIGHTS AFFORDED BY
42 U.S.C. §1983, §1985 AND §1988

219. Plaintiff, Ms. Paucar repeats, reiterates and realleges each and every allegation set forth in paragraphs 1 through 218, inclusive, of this Complaint, with the same force and effect as though more fully set forth at length herein.

220. By their conduct, defendants under color of law deprived Ms. Paucar of her constitutional rights to be free from excessive and unreasonable force.

221. Plaintiff claims compensatory and punitive damages for the injuries set forth above and accordingly has been damaged in an amount exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

TWENTY-SECOND CAUSE OF ACTION
ON BEHALF OF SONIA PAUCAR FOR ASSAULT AND BATTERY

222. Plaintiff, Ms. Paucar, repeats, reiterates and realleges each and every allegation set forth in paragraphs 1 through 221, inclusive, of this Complaint, with the same force and effect as though more fully set forth at length herein.

223. By reason of defendants' aforesaid acts, specifically in the course of their false arrest and imprisonment of the plaintiff, defendants committed the torts of assault and battery upon her.

224. That at all relevant times herein, defendants, their agents, servants and/or employees were under a duty to protect Ms. Paucar from the violation of her civil rights, menacing, assault, battery, excessive force, brutality, and/or other intentional acts, negligence, recklessness and/or want of care in her unlawful detention and/or arrest by the NYPD police officers committing said acts.

225. That at all relevant times herein, defendants, their agents, servants and/or employees menaced, assaulted, battered, and used excessive force, maliciousness and brutality in the arrest, detention and custody of Ms. Paucar.

226. That at all relevant times herein, defendants, their agents, servants and/or employees caused Ms. Paucar to reasonably apprehend that she was about to be harmfully and offensively contacted in her arrest and detention.

227. That at all relevant times herein, defendants, their agents, servants and/or employees offensively contacted and harmed Ms. Paucar during her arrest and detention.

228. That at all relevant times herein, defendants, their agents, servants and/or employees acted in an unsafe and unreasonable manner in the arrest, detention and custody of Ms. Paucar under the circumstances and conditions then and there existing.

229. That at all relevant times herein, defendants, their agents, servants and/or employees were negligent, reckless and intentional in their failure to protect Ms. Paucar from the violation of her civil rights, menacing, assault, battery, excessive force and brutality in her arrest and/or detention.

230. That solely as a result of the negligence, recklessness and/or intentional acts of defendants as aforesaid, plaintiff suffered injuries including but not limited to severe and permanent personal physical injuries, loss of freedom, loss of enjoyment of life, had her civil rights violated, severe and permanent emotional injuries, severe and permanent psychological injuries, anguish, distress, humiliation, embarrassment, shame, lost earnings, medical expenses and legal expenses and claims damages for the aforesaid injuries and accordingly has been damaged in an amount exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

231. That solely as a result of the negligence, recklessness and/or intentional acts of defendants as aforesaid, Ms. Paucar suffered great humiliation, degradation, emotional injuries; loss of freedom; deprivation of his state and federal constitutional rights; serious, severe and permanent personal injuries and disabilities; pain and suffering and loss of enjoyment of life; economic harm; was rendered sick, sore, lame and disabled; sustained severe mental anguish, nervous shock and great physical pain and has been damaged accordingly in an amount exceeding the jurisdictional limits of all lower courts, which would otherwise have jurisdiction.

TWENTY-THIRD CAUSE OF ACTION
ON BEHALF OF SONIA PAUCAR FOR
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS

232. Plaintiff, Ms. Paucar, repeats, reiterates and realleges each and every allegation set forth in paragraphs 1 through 231, inclusive, of this Complaint, with the same force and effect as though more fully set forth at length herein.

233. By their foregoing acts, specifically their false arrest and unlawful imprisonment of her, their assault and battery upon her, defendants intended to and did cause the foregoing harm to plaintiff.

234. That at all times relevant herein, defendants, their agents, servants and/or employees acted intentionally and/or with a reckless disregard for the likelihood of causing emotional distress to plaintiff in fraudulently and maliciously pursuing the malfeasance, including all acts further thereto as set forth above.

235. That at all times relevant herein, defendants, their agents, servants and/or employees acted intentionally and/or with a reckless disregard for the likelihood of causing emotional distress to plaintiff in being verbally abusive, intimidating and threatening to her.

236. That at all times relevant herein, defendants, their agents, servants and/or employees acted heinously and beyond the standards of civilized decency.

237. That at all times relevant herein, defendants, their agents, servants and/or employees' conduct was utterly intolerable in a civilized society.

238. That at all times relevant herein, defendants, their agents, servants and/or employees committed these acts in public.

239. That solely as a result of the negligence, recklessness and/or intentional acts of defendants as aforesaid, Ms. Paucar suffered great humiliation, degradation, emotional injuries; loss of freedom; deprivation of her state and federal constitutional rights; serious, severe and permanent personal injuries and disabilities; pain and suffering and loss of enjoyment of life; economic harm; was rendered sick, sore, lame and disabled; sustained severe mental anguish, nervous shock and great physical pain and has been damaged accordingly in an amount exceeding the jurisdictional limits of all lower courts, which would otherwise have jurisdiction.

TWENTY-FOURTH CAUSE OF ACTION
ON BEHALF OF SONIA PAUCAR FOR
NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS

240. Plaintiff, Ms. Paucar, repeats, reiterates and realleges each and every allegation set forth in paragraphs 1 through 239, inclusive, of this Complaint, with the same force and effect as though more fully set forth at length herein.

241. That at all times relevant herein, defendants, their agents, servants and/or employees were under an affirmative duty to refrain from abusing their power and position and from fraudulently and maliciously pursuing the malfeasance, including all acts further thereto as set forth above.

242. That at all times relevant herein, defendants, their agents, servants and/or employees knew or reasonably should have known that the malfeasance could lead to plaintiff's harm.

243. That at all times relevant herein, plaintiff justifiably relied upon defendants, their agents, servants and/or employees to conduct themselves properly as public officials and not to abuse their power and position in the manner as set forth above.

244. That at all times relevant herein, defendants, their agents, servants and/or employees breached their duty to plaintiff by abusing their power and position as set forth above.

245. That at all times relevant herein, defendants, their agents, servants and/or employees were under an affirmative duty to treat plaintiff with courtesy, professionalism and respect.

246. That at all times relevant herein, defendants, their agents, servants and/or employees knew or reasonably should have known that failing and/or refusing to treat plaintiff with courtesy, professionalism and respect could lead to her harm under the circumstances then and there existing.

247. That at all times relevant herein, plaintiff justifiably relied upon defendants, their agents, servants and/or employees to treat her with courtesy, professionalism and respect.

248. That at all times relevant herein, defendants, their agents, servants and/or employees breached their duty to plaintiff in being verbally abusive, intimidating and threatening to her.

249. That solely as a result of the negligence of defendants as aforesaid, Ms. Paucar suffered injuries including but not limited to severe and permanent emotional injuries, severe and permanent psychological injuries, anguish, distress, humiliation, embarrassment, shame, severe and permanent personal physical injuries, loss of enjoyment of life, had her civil rights violated, lost earnings, medical expenses and legal expenses and claims damages for the aforesaid injuries and accordingly has been damaged in an amount exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

TWENTY-FIFTH CAUSE OF ACTION
ON BEHALF OF SONIA PAUCAR FOR
FAILURE TO INTERVENE

250. Plaintiff, Ms. Paucar, repeats, reiterates and realleges each and every allegation set forth in paragraphs 1 through 249, inclusive, of this Complaint, with the same force and effect as though more fully set forth at length herein.

251. Each and every individual defendant had an affirmative duty to intervene on Ms. Paucar's behalf to prevent the violation of her constitutional rights.

252. The individual defendants failed to intervene on Ms. Paucar's behalf to prevent the violation of her constitutional rights despite having had a realistic opportunity to do so.

253. As a result of the aforementioned conduct of the individual defendants, Ms. Paucar's constitutional rights were violated and he was subjected to excessive force, causing her to suffer injuries including but not limited to severe and permanent emotional injuries, severe and permanent psychological injuries, anguish, distress, humiliation, embarrassment, shame, severe and permanent personal physical injuries, loss of enjoyment of life, had her civil rights violated, lost earnings, medical expenses and legal expenses and claims damages for the aforesaid injuries and accordingly has been damaged in an amount exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

TWENTY-SIXTH CAUSE OF ACTION
ON BEHALF OF SONIA PAUCAR FOR
MALICIOUS ABUSE OF PROCESS UNDER 42 U.S.C. § 1983

254. Plaintiff, Ms. Paucar, repeats, reiterates and realleges each and every allegation set forth in paragraphs 1 through 253, inclusive, of this Complaint, with the same force and effect as though more fully set forth at length herein.

255. Defendants abused the legal process to place Ms. Paucar under arrest.

256. Defendants arrested Ms. Paucar in order to obtain a collateral objective outside the legitimate ends of the legal process.

257. Defendants acted with intent to do harm to Ms. Paucar without excuse or justification.

258. That solely as a result of the negligence, recklessness and/or intentional acts of defendants as aforesaid, Ms. Paucar suffered great humiliation, degradation, emotional injuries; loss of freedom; deprivation of her state and federal constitutional rights; serious, severe and permanent personal injuries and disabilities; pain and suffering and loss of enjoyment of life; economic harm; was rendered sick, sore, lame and disabled; sustained severe mental anguish, nervous shock and great physical pain and has been damaged accordingly in an amount exceeding the jurisdictional limits of all lower courts, which would otherwise have jurisdiction.

TWENTY SEVENTH CAUSE OF ACTION
ON BEHALF OF SONIA PAUCAR FOR
DELAY AND DENIAL OF MEDICAL TREATMENT AND FAILURE
TO PROTECT WHILE IN CUSTODY
VIOLATION OF CIVIL RIGHTS AFFORDED BY
42 U.S.C. §1983, §1985 AND §1988

259. Plaintiff, Ms. Paucar, repeats, reiterates and realleges each and every allegation set forth in paragraphs 1 through 258, inclusive, of this Complaint, with the same force and effect as though more fully set forth at length herein.

260. By their conduct and under color of law, defendants deprived Ms. Paucar of her constitutional rights to immediate medical treatment and failed to protect him once he became a prisoner, thus perpetuating and exacerbating his physical and mental pain and suffering.

261. As a result of the foregoing, plaintiff suffered injuries including but not limited to severe and permanent personal physical injuries, loss of freedom, loss of enjoyment of life, had her civil rights violated, severe and permanent emotional injuries, severe and permanent psychological

injuries, anguish, distress, humiliation, embarrassment, shame, lost earnings, medical expenses and legal expenses and claims damages for the aforesaid injuries and accordingly has been damaged in an amount exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

TWENTY-EIGHTH CAUSE OF ACTION
ON BEHALF OF SONIA PAUCAR FOR
NEGLIGENT HIRING AND RETENTION

262. Plaintiff, Ms. Paucar, repeats, reiterates and realleges each and every allegation set forth in paragraphs 1 through 261, inclusive, of this Complaint, with the same force and effect as though more fully set forth at length herein.

263. Upon information and belief, defendants failed to use reasonable care in the hiring and retention of the aforesaid defendants who conducted and participated in the arrest of Ms. Paucar.

264. Defendants knew, or should have known in the exercise of reasonable care, the propensities of the individual defendants to engage in the wrongful conduct heretofore alleged in this Verified Complaint.

265. That solely as a result of the negligence, recklessness and/or intentional acts of defendants as aforesaid, Ms. Paucar suffered great humiliation, degradation, emotional injuries; loss of freedom; deprivation of her state and federal constitutional rights; serious, severe and permanent personal injuries and disabilities; pain and suffering and loss of enjoyment of life; economic harm; was rendered sick, sore, lame and disabled; sustained severe mental anguish, nervous shock and great physical pain and has been damaged accordingly in an amount exceeding the jurisdictional limits of all lower courts, which would otherwise have jurisdiction.

TWENTY-NINTH CAUSE OF ACTION
ON BEHALF OF SONIA PAUCAR FOR
NEGLIGENT TRAINING AND SUPERVISION

266. Plaintiff, Ms. Paucar, repeats, reiterates and realleges each and every allegation set forth in paragraphs 1 through 265, inclusive, of this Complaint, with the same force and effect as though more fully set forth at length herein.

267. Upon information and belief, defendants failed to use reasonable care in the training and supervision of the aforesaid defendants who conducted and participated in the arrest of Ms. Paucar.

268. That solely as a result of the negligence, recklessness and/or intentional acts of defendants as aforesaid, Ms. Paucar suffered great humiliation, degradation, emotional injuries; loss of freedom; deprivation of her state and federal constitutional rights; serious, severe and permanent personal injuries and disabilities; pain and suffering and loss of enjoyment of life; economic harm; was rendered sick, sore, lame and disabled; sustained severe mental anguish, nervous shock and great physical pain and has been damaged accordingly in an amount exceeding the jurisdictional limits of all lower courts, which would otherwise have jurisdiction.

THIRTIETH CAUSE OF ACTION
ON BEHALF OF SONIA PAUCAR FOR MALICIOUS PROSECUTION

269. Plaintiff, Ms. Paucar, repeats, reiterates and realleges each and every allegation set forth in paragraphs 1 through 268, inclusive, of this Complaint, with the same force and effect as though more fully set forth at length herein.

270. As a result of the foregoing malicious prosecution, plaintiff suffered injuries including but not limited to severe and permanent personal physical injuries, loss of freedom, loss of enjoyment of life, had her civil rights violated, severe and permanent emotional injuries, severe and

permanent psychological injuries, anguish, distress, humiliation, embarrassment, shame, lost earnings, medical expenses and legal expenses and claims damages for the aforesaid injuries and accordingly has been damaged in an amount exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

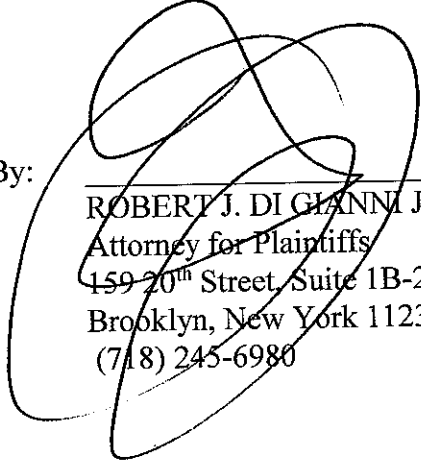
THIRTY-FIRST CAUSE OF ACTION
ON BEHALF OF SONIA PAUCAR FOR NEGLIGENCE

271. Plaintiff, Ms. Paucar, repeats, reiterates and realleges each and every allegation set forth in paragraphs 1 through 270, inclusive, of this Complaint, with the same force and effect as though more fully set forth at length herein.

272. That defendants were negligent in the false arrests, unlawful imprisonments and malicious prosecution of Ms. Paucar; in failing to use such care in the performance of police duties as a reasonably prudent and careful police officer would have used under similar circumstances without any negligence on the part of Ms. Paucar contributing thereto; and defendants were negligent in hiring and retaining a persons who were unfit to serve as police officers and who they knew or should have known had dangerous propensities and lack of proper temperament, in that defendants failed to exercise reasonable precautions in employing the aforesaid police officers and failing to properly investigate their background and that these police officers were otherwise unfit to serve as police officers for defendants; and defendants were negligent in its instructions of its police officers b not exercising care in instructing them as to their deportment, behavior and conduct as police officers and representatives of defendants and in training and instructions, among other things of the proper conduct of police officers in making an arrest and what they should do following an arrest of an individual.

WHEREFORE, plaintiff, TALISA FELICIANO demands judgment against the defendants stated herein under the first cause of action through the sixteenth cause of action in an amount exceeding the jurisdictional limits of all lower courts, which would otherwise have jurisdiction over this matter; and plaintiff, SONIA PAUCAR demands judgment against the defendants stated herein under the first cause of action through the sixteenth cause of action in an amount exceeding the jurisdictional limits of all lower courts, which would otherwise have jurisdiction over this matter, together with the costs and disbursements of this action.

Dated: Brooklyn, New York
February 24, 2015

By: 

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